

CHAPTER 63.

An Act to provide for the better protection of the public in relation to the sale of food, including agricultural and horticultural produce.

[15th December 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. A person shall not, in selling any article of food by weight, measure or number, deliver or cause to be delivered to the purchaser a less weight, measure or number, as the case may be, than is purported to be sold.

Prohibition of giving of short weight, measure or number.

2. A statement as to the weight or measure of a pre-packed article of food shall be deemed to be a statement as to the net weight or measure thereof unless otherwise specified.

Statements as to weight or measure on pre-packed articles.

3. A person shall not on or in connection with the sale of any article of food, or in exposing or offering any article of food for sale, make any misrepresentation either by word of mouth or otherwise, or commit any other act calculated to mislead the purchaser or prospective purchaser, as to the weight or measure of the article, or, if any articles are being sold or offered for sale by number, as to the number of articles sold or offered for sale.

Misrepresentation.

4.—(1) A person shall not sell any article of any of the kinds of food set forth in the First Schedule to this Act otherwise than by net weight except that, in the case of articles specified in Part II and Part III of that Schedule, where the article is weighed for sale in a wrapper or container the weight purported to be sold may include the weight of the wrapper or container

Provisions applicable to the sale of certain articles of common consumption.

if the weight of the wrapper or container does not exceed—

- (a) in the case of an article specified in Part II of the Schedule two and a half drams; and
- (b) in the case of an article specified in Part III of the Schedule for a parcel not exceeding three pounds in weight four and a half drams, for a parcel exceeding three pounds but not exceeding seven pounds in weight three and a half drams, and for a parcel exceeding seven pounds in weight three drams,

per pound of the article sold.

(2) A person shall not sell or have in his possession for sale any pre-packed article of food of any of the kinds set forth in the First Schedule to this Act, unless—

- (a) the article is made up for sale in quantities of two ounces, or in multiples of two ounces up to a limit of eight ounces, in multiples of a quarter of a pound up to a limit of two pounds, in multiples of half a pound up to a limit of four pounds, or in multiples of one pound; and
- (b) the wrapper or container bears thereon, or on a label securely attached thereto, a true statement in plain characters of the minimum net weight of the article contained therein, or, in any case where the weight of the wrapper or container is permitted by the preceding subsection to be included in the weight purported to be sold, of the minimum weight of the article with its wrapper or container:

Provided that, in the case where the article is made up for sale on the premises where it is sold or kept for sale by a retailer and is made up in quantities of two ounces, four ounces, eight ounces, one pound, or a multiple of one pound, it shall not be necessary that such a statement as aforesaid should be borne on or attached to the wrapper or container.

(3) Any such statement as aforesaid shall not be deemed to be untrue if it is shown that it was true at the time of packing or of importation, whichever was

the later, and the original wrapper or container has remained intact.

(4) A person shall not sell any article (not being a pre-packed article) of any of the kinds of food set forth in the First Schedule to this Act in quantities other than two ounces, four ounces, eight ounces, one pound, or multiples of one pound unless—

- (a) the article is weighed in the presence of the purchaser and forthwith delivered to him; or
- (b) the article is delivered to the purchaser accompanied by a legible statement of its weight.

(5) It shall be lawful to print on any wrapper or container in which any pre-packed article is contained a statement of weight notwithstanding anything in any other Act to the contrary.

(6) This section shall not apply in the case of any article which is proved to have been sold for shipment to a place outside Great Britain or to be intended to be so sold.

5.—(1) A person shall not sell any butchers' meat otherwise than by net weight.

Provisions
applicable
to the sale
of butchers'
meat.

(2) A person shall not deliver or cause to be delivered to a purchaser any butchers' meat without a legible statement of the net weight on which the purchase price is based unless delivery is made to the purchaser on or at the premises of the seller immediately after the meat has been weighed in the presence of the purchaser:

Provided that where at the request of the purchaser the meat is boned, trimmed, or subjected to any other process involving loss of weight before delivery, and the bones or other material thus removed are not delivered with the meat, or where at the request of the purchaser delivery of the meat is deferred, such statement as afore-said shall include a statement of the net weight of the meat as sent out for delivery as well as the net weight on which the purchase price is based.

6.—(1) A person shall not sell or offer for sale any bread otherwise than by net weight.

Provisions
applicable

to the sale of
bread.

(2) A person shall not sell or have in his possession for sale or delivery under a contract of sale any loaf of bread unless its net weight is one pound or an integral number of pounds:

Provided that this subsection shall not apply to loaves supplied under contract where the contract provides for the supply for consumption on the premises of the purchaser of not less than half a hundredweight of bread at a time, and for the weighing of the bread on delivery.

(3) The foregoing provisions of this section shall not apply to fancy bread or to loaves not exceeding twelve ounces in weight:

Provided that the foregoing provisions shall apply to pan loaves, French loaves, and loaves of a similar character, with this modification, that in Scotland any such loaf of the net weight of one-and-three-quarter pounds may be sold or delivered for sale if the weight is clearly marked either by an impression made in baking or on any printed band or wrapper surrounding or containing the loaf.

(4) Every person selling bread, or having in his possession any bread for the purpose of sale, shall provide and keep in some conspicuous part of his shop or premises a correct weighing instrument of a pattern suitable for weighing bread, and shall, if so required by the purchaser, or by an inspector of weights and measures, weigh the bread in the presence of the person so requiring, or, if the person so requiring is such an inspector as aforesaid, shall permit the inspector to weigh the bread.

(5) Every person carrying bread for sale or delivery to a purchaser shall, if so required by an inspector of weights and measures, permit the inspector to weigh the bread.

Provisions
applicable
to the sale
of milk.

7.—(1) A person shall not sell any milk, or have in his possession for sale or delivery on sale any pre-packed milk, except in quantities of half a pint or multiples of half a pint.

(2) This section shall extend to skimmed and separated milk and pasteurised milk and to milk which has been subjected to any other process, except that it shall not apply to dried or condensed milk.

8. Nothing contained in the last four foregoing sections of this Act shall apply to the sale or offering for sale of any article of food for consumption on or at the premises of the seller, or to sales in petty amounts. Savings.

9.—(1) The Board of Trade, after consultation with the Minister of Agriculture and Fisheries and such interests as appear to them to be concerned, may make regulations for the purpose— Power of Board of Trade to make regulations.

- (a) of making additions to or removals from or otherwise varying the list of articles set forth in the First Schedule to this Act;
- (b) of requiring any articles of food other than those required by this Act to be sold by weight or by measure to be sold only by weight or by measure, and of applying to any such articles any of the provisions of this Act, either without modification or subject to such modifications as may be specified in the regulations;
- (c) of requiring any pre-packed articles of food other than those mentioned in the First Schedule to this Act to be labelled with an indication of their weight or measure;
- (d) of prescribing the manner in which indications of weight or measure are to be marked on pre-packed articles required by or under this Act to be marked with such indications, and the manner of re-sealing wrappers and containers broken open under this Act;

and where the First Schedule is varied by the regulations this Act shall have effect as if the Schedule as so varied was substituted for the Schedule contained in this Act.

(2) Before any regulations other than regulations under paragraph (d) of subsection (1) of this section are made, the draft of the proposed regulations shall be laid before both Houses of Parliament, and the regulations shall not be made unless both Houses by resolution approve the draft either without modification or addition or with modifications or additions to which both Houses agree, but upon such approval being given the regulations

may be made in the form in which they have been so approved.

Regulations made under paragraph (d) of subsection (1) of this section shall be laid before both Houses of Parliament as soon as may be after they are made.

(3) Regulations made under this section, if and so far as they relate to pre-packed articles, shall not come into force before the expiration of a period of six months after they are made.

Powers of
inspection
and entry.
41 & 42 Vict.
c. 49.

10.—(1) The power of inspection and of entry conferred upon inspectors of weights and measures by section forty-eight of the Weights and Measures Act, 1878, for the purposes therein specified shall extend to the inspection and weighing or measuring by any such inspector of any pre-packed articles of food for the purpose of ascertaining whether they comply with the requirements of this Act, and to the entry into any place in which the inspector has reasonable cause to believe that any such pre-packed articles intended for sale are situated.

(2) Where any person has in his possession for sale or delivery on sale any pre-packed article of food of any kind which is required by or under this Act to be sold by weight or measure, or any article of food in respect of which any representation of weight or measure is made, he shall, if so requested by an inspector of weights and measures weigh or measure such article in the inspector's presence or permit the inspector to weigh or measure it, and, if necessary for this purpose, shall break open, or allow the inspector to break open, any wrapper or container in which such article is packed, and shall also if so requested by the inspector sell the article to him.

(3) Where any wrapper or container in which any pre-packed article is held ready for retail sale, or is being delivered on retail sale, is broken open by or at the request of an inspector of weights and measures for the purpose of ascertaining the weight or measure of its contents and is found to comply with the requirements of this Act then, where the wrapper or container can be re-sealed without injury to the contents, the inspector

shall re-seal the wrapper or container with a label certifying that the weight or measure of the contents has been proved to be correct, and if the inspector does not so re-seal the wrapper or container the retailer may if he so desires require the said inspector to purchase the article on behalf of the local authority.

(4) All weights, measures, weighing and measuring appliances used by an inspector of weights and measures in pursuance of this Act shall be made of such material, and in such form, as may be approved by the Board of Trade, and shall be verified and periodically reverified in such manner as the Board of Trade may from time to time direct.

11.—(1) Any person who refuses to comply with a request made by an inspector of weights and measures under this Act, or in any other manner obstructs or hinders an inspector in the exercise of his duties under this Act, shall be liable on summary conviction to a fine not exceeding in the case of a first offence five pounds, and in the case of a second or subsequent offence ten pounds. Penalties.

(2) Any person who fails to provide or keep a suitable weighing machine for weighing bread as required by this Act shall be liable on summary conviction to a fine not exceeding five pounds.

(3) Any person who acts in contravention of any other provision of this Act for which no special penalty is provided shall be liable on summary conviction to a fine not exceeding in the case of a first offence five pounds, in the case of a second offence twenty pounds, and in the case of a third or subsequent offence fifty pounds.

12.—(1) In any proceedings under this Act in respect of an alleged deficiency of weight or measure of any pre-packed article or of bread, the court shall disregard any inconsiderable variation in the weight or measure of a single article, and shall have regard to the average weight or measure of a reasonable number of other articles of the same kind (if any) sold or delivered by the defendant, or in his possession for the purpose of sale or delivery, on the same occasion, and generally to all the circumstances of the case. Safeguards to traders.

(2) In any proceedings under this Act in respect of an alleged deficiency of weight or measure or number, if the defendant proves to the satisfaction of the Court that such deficiency was due to a *bona fide* mistake or accident, or other causes beyond his control, and in spite of all reasonable precautions being taken and all due diligence exercised by the said defendant to prevent the occurrence of such deficiency, or was due to the action of some person over whom the defendant had no control, the defendant shall be discharged from the prosecution.

(3) In any proceedings under this Act in respect of an alleged deficiency in the weight of any article of food delivered to a purchaser, the defendant shall be discharged from the prosecution if he proves to the satisfaction of the court that the alleged deficiency was due to unavoidable evaporation or drainage and that due care and precaution had been taken to avoid such deficiency.

38 & 39 Vict. c. 63.
 62 & 63 Vict. c. 51.

(4) The provisions of section twenty-five of the Sale of Food and Drugs Act, 1875, and of section twenty of the Sale of Food and Drugs Act, 1899, relating to warranties, as set out with appropriate modifications in the Second Schedule to this Act, are hereby incorporated with this Act and shall apply to offences under this Act in respect of pre-packed articles of food, as they apply to proceedings for offences against the Sale of Food and Drugs Acts, 1875 to 1907.

(5) Where an employer or principal is charged with an offence against this Act, he shall be entitled on information duly laid by him, and on giving not less than three days' notice of his intention to the prosecution, to have any other person whom he charges as the actual offender brought before the court at the time appointed for hearing the charge, and, if after the commission of the offence has been proved, the employer or principal proves to the satisfaction of the court that he had used due diligence to enforce the execution of this Act, and that the said other person had committed the offence in question without his consent, connivance or wilful default, the said other person shall be summarily convicted of the offence and the employer or principal shall be exempt from any penalty :—

155; Provided that the prosecution shall have in any such case the right to cross-examine the employer or principal if he gives evidence, and any witnesses called by him in support of his charge and to call rebutting evidence.

The person so convicted shall, in the discretion of the court, be also liable to pay any costs incidental to the proceedings.

(6) A prosecution in respect of an offence by a retailer under this Act, other than an offence of obstructing or hindering an inspector in the exercise of his duties, shall not be instituted after the expiration of twenty-eight days from the time when the offence was committed, nor unless within seven days after the alleged commission of the offence notice in writing of the date and nature of the alleged offence has been served on or sent by registered post to the defendant, nor unless in the case of any alleged deficiency the person against whom the allegation is made has been given reasonable opportunity to check the weight, measure or number of the article or articles in respect of which such allegation is made.

(7) A prosecution under this Act shall not be instituted except by or on behalf of the Director of Public Prosecutions, a police authority or a local authority.

13.—(1) For the purpose of this Act unless the context otherwise requires— Interpre-
tation.

The expression “purchaser” includes any person acting on behalf of the purchaser;

The expression “pre-packed” article means any article which is packed or made up in advance ready for retail sale in a wrapper or container, and where any article packed or made up in a wrapper or container is found on any premises where such articles are packed, kept or stored for sale, the article shall be deemed to be packed or made up in advance ready for retail sale unless the contrary is proved;

The expression “food” has the same meaning as in the Sale of Food and Drugs Act, 1899, that is to say, it means and includes every article

10 & 11
Geo. 5. c. 54.

used for food or drink by man, and any article which ordinarily enters into or is used in the composition or preparation of human food; and also includes flavouring matters and condiments, but does not include articles sold or offered for sale as seed potatoes or seeds in respect of which the requirements of the Seeds Act, 1920, are complied with;

The expression "butchers' meat" means beef, mutton, veal, lamb or pork, whether fresh, chilled, frozen or salted, and includes livers, but does not include heads, feet, hearts, lights, kidneys or sweetbreads, bacon, ham, pressed beef or any meat so treated as to be fit for human consumption without further preparation or cooking;

The expression "sale in petty amounts" means sale by the single pennyworth, or less than the pennyworth, or sale in quantities purporting to be less than two ounces.

(2) For the purposes of this Act, a person shall not be deemed to weigh or measure any article in the presence of the purchaser or an inspector of weights and measures, as the case may be, unless he causes the weighing or measuring appliance or appliances used for the purpose to be so placed, and so conducts the operation of weighing or measuring the article, as to permit the purchaser or inspector a clear and unobstructed view of the said appliance or appliances and of the said operation and of all the indications of weight or measure pertaining to such operation.

(3) Any powers or duties conferred or imposed by this Act on an inspector of weights and measures may, in any case where the local authority so determine, be exercised or performed by any other officer of the local authority appointed by them to act on behalf of an inspector of weights and measures for the purposes of this Act, and all references in this Act to inspectors of weights and measures shall be construed accordingly.

(4) In the application of this Act to Scotland—

(a) references to the Board of Agriculture for Scotland shall be substituted for references

to the Minister of Agriculture and Fisheries, and the expression "information" shall mean petition or complaint;

- (b) nothing contained in section twenty-seven of the Milk and Dairies (Scotland) Act, 1914, 4 & 5 Geo. 5. shall be construed as limiting or affecting the application of the provisions of the Second Schedule to this Act to proceedings in respect of pre-packed milk;
- (c) for any reference to the Director of Public Prosecutions there shall be substituted a reference to the Lord Advocate.

14. This Act, except so far as it applies to pre-packed articles of food, shall apply only to retail dealings. Application of Act.

15.—(1) This Act may be cited as the Sale of Food (Weights and Measures) Act, 1926, and shall be construed as one with the Weights and Measures Acts, 1878 to 1926, and shall be included amongst the Acts which may be cited as the Weights and Measures Acts, 1878 to 1926. Short title, construction, commencement, repeal and extent.

(2) This Act shall come into operation on the first day of July, nineteen hundred and twenty-seven, except that the provisions of this Act so far as they relate to pre-packed articles other than tea shall not take effect until the expiration of such period, not being less than six months from that date, as the Board of Trade may by order determine, and different periods may be fixed by the Board in regard to different articles.

(3) The enactments set forth in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that schedule.

(4) This Act shall not apply to Northern Ireland.



SCHEDULES.

Sections 4
and 9.

FIRST SCHEDULE.

PART I.

ARTICLES REQUIRED TO BE SOLD BY NET WEIGHT.

Tea.	Cocoa.
Coffee beans.	Cocoa powder.
Ground coffee, including	Chocolate powder.
chicory mixtures.	Potatoes.

PART II.

ARTICLES REQUIRED TO BE SOLD BY NET WEIGHT, EXCEPT WHERE WEIGHED FOR SALE IN A WRAPPER OR CONTAINER AND THE WEIGHT OF THE WRAPPER OR CONTAINER DOES NOT EXCEED TWO AND A HALF DRAMS PER POUND OF THE ARTICLES SOLD.

Bacon.	Lard.
Ham.	Suet.
Butter.	Margarine.

PART III.

ARTICLES REQUIRED TO BE SOLD BY NET WEIGHT, EXCEPT WHERE WEIGHED FOR SALE IN A WRAPPER OR CONTAINER, AND THE WEIGHT OF THE WRAPPER OR CONTAINER DOES NOT EXCEED THE SPECIFIED NUMBER OF DRAMS PER POUND OF THE ARTICLE SOLD.

Flour of wheat, rye, maize,	Sago.
pea, or bean, including	Tapioca.
self-raising flour and cake	Sugar.
flour.	Dried beans.
Cornflour.	Dried peas.
Oatmeal.	Dried currants.
Rolled oats.	Dried raisins.
Rice.	Dried sultanas.

SECOND SCHEDULE.

Sections 12
and 13.

PROVISIONS OF THE SALE OF FOOD AND DRUGS ACTS APPLIED.

(1) If in any proceedings under this Act in respect of any pre-packed article of food the defendant proves that he purchased the article in the wrapper or container in which he sold it or had it in his possession for the purposes of sale and with a written warranty of the weight or measure or number of the article, and that he had no reason to believe, at the time when he sold it or had it in his possession for the purposes of sale, that the article or its wrapper or container did not comply with the provisions of this Act, he shall be entitled to be discharged from the prosecution.

(2) A warranty shall not be available as a defence to any proceedings under this Act unless the defendant has, within seven days after service of the summons, sent to the prosecutor a copy of such warranty with a written notice stating that he intends to rely on the warranty and specifying the name and address of the person from whom he received it, and has also sent a like notice of his intention to such person.

(3) The person by whom such warranty is alleged to have been given shall be entitled to appear at the hearing and to give evidence, and the court may, if it thinks fit, adjourn the hearing to enable him to do so.

(4) A warranty given by a person resident outside Great Britain shall not be available as a defence to any proceeding under this Act, unless the defendant proves that he had taken reasonable steps to ascertain, and did in fact believe in, the accuracy of the statement contained in the warranty.

(5) Where the defendant is a servant of the person to whom a warranty was given, he shall, subject to the provisions hereof, be entitled to rely on the defence hereby allowed in the same way as his employer or master would have been entitled to do if he had been the defendant, provided that the servant further proves that he had no reason to believe that the pre-packed article did not comply with the provisions of this Act.

(6) Where the defendant in a prosecution under this Act has been discharged under the provisions of this schedule, any proceedings for giving the warranty relied on by the defendant in such prosecution may be taken as well before a court having

2ND SCH.
—cont.

jurisdiction in the place where the contravention of this Act took place, as before a court having jurisdiction in the place where the warranty was given.

(7) Every person who, in respect of the weight measure or number of any article of food sold by him as principal or agent, gives to the purchaser a false warranty in writing, shall be liable on summary conviction, for a first offence, to a fine not exceeding twenty pounds, for a second offence to a fine not exceeding fifty pounds, and for any subsequent offence to a fine not exceeding one hundred pounds, unless he proves to the satisfaction of the court that when he gave the warranty he had reason to believe that the statements or descriptions contained therein were true.

(8) For the purposes of the foregoing provisions a statement on any container or any wrapper, band or label affixed thereto or delivered therewith or a statement contained in an invoice, shall be deemed to be a written warranty.

(9) An invoice describing the weight or measure or number of the article shall be a sufficient warranty notwithstanding that it contains no words of express warranty or was delivered after the purchase of the article.

Section 15.

THIRD SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
3 Geo. 4. c. cvi.	An Act to repeal the Acts now in force relating to Bread to be sold in the City of London and the Liberties thereof, and within the Weekly Bills of Mortality, and ten miles of the Royal Exchange; and to provide other regulations for the Making and Sale of Bread, and preventing the Adulteration of Meal, Flour, and Bread, within the limits aforesaid.	Sections three, four, eight and nine. c .
6 & 7 Will. 4. c. 37.	The Bread Act, 1836	Sections three, four, six and seven.

3RD SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
34 & 35 Vict. c. cxli.	The Aberdeen Municipality Extension Act, 1871.	Section one hundred and fifty-one.
45 & 46 Vict. c. clxxxv.	The Dundee Police and Improvement Consolidation Act, 1882	Section one hundred and seventy-two in so far as it incorporates section two hundred and seventy of the General Police and Improvement (Scotland) Act, 1862.
52 & 53 Vict. c. 21.	The Weights and Measures Act, 1889.	Section thirty-two.
55 & 56 Vict. c. 55.	Burgh Police (Scotland) Act, 1892.	Section four hundred and twenty-seven.
58 & 59 Vict. c. cxliii.	The Glasgow Corporation and Police Act, 1895.	Section thirty-six.
4 Edw. 7. c. 28.	The Weights and Measures Act, 1904.	Section eleven.
9 Edw. 7. c. cxxix.	The Greenock Corporation Act, 1909.	Section three hundred and sixty-seven in so far as it relates to section four hundred and twenty-seven of the Burgh Police (Scotland) Act, 1892.
3 & 4 Geo. 5. c. lxxiv.	The Edinburgh Corporation Act, 1913.	Section eighty-five.
12 & 13 Geo. 5. c. 29.	The Sale of Tea Act, 1922.	The whole Act.